

Court No. - 21

Case :- WRIT - C No. - 9518 of 2017

Petitioner :- Yogesh Kumar Jain

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- Satyendra Narayan Singh

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble V.K. Shukla,J.

Hon'ble Ashok Kumar,J.

On the matter being taken up today, the only prayer that has been made on behalf of the petitioner is that representation moved on 27th January, 2017, be directed to be decided by the Authority concerned, so that his grievance in question could be redressed on the basis of record available.

Sri A.K. Saxena, appearing for the respondents, on the other hand has contended that once in pith and substance, petitioner is raising dispute in respect to the adjusting of the bill in question, then his remedy lies in filing his complaint under Paragraph 6.5 of U.P. Electricity Supply Code, 2005, and in view of this, the petitioner should avail remedy before aforementioned forum.

In pith and substance, it is the validity of the bill in question that has been so raised before us, and as such, in our considered opinion, it would be much more appropriate if the petitioner would invoke the aforementioned forum as is provided under Paragraph 6.5 of U.P. Electricity Supply Code, 2005.

Confronted with this situation, learned counsel for the petitioner submitted before us that he has already moved application/complaint before the appropriate forum as has been prescribed under section 6.5 of U.P. Electricity Supply Code, 2005.

Consequently, we proceed to pass an order asking the Executive Engineer, Electric Urban Distribution Division 1st Pasimanchal Electric Distribution Corporation Ltd. Town Hall, Muzaffar Nagar, to take a final call on the said application preferably within two month from the date of production of certified copy of the order passed by this Court.

With this, present writ petition is **disposed of**.

Order Date :- 2.3.2017

Shalini